

22STCV16359 22STCV16359

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 22STCV16359 Hearing Date: August 12, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

MEIR

LEVY,

Plaintiff,

vs.

TOVA

FAGAN, et al.

Defendants.

Case No.:

22STCV16359

Hearing

Date:

August 12,

2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT Yael

Sima Wintner's Motion to Compel the Deposition of Witness David Levy

Background

Plaintiff Meir Levy

("Plaintiff") filed this action on May 17, 2022 against Defendants Tova Fagan and Yael Sima Wintner.

On July 11, 2023,

Plaintiff filed a first amended complaint.

On July 11, 2023,

Plaintiff filed an amendment to the complaint naming Pinchas (Paul) Wintner in place of Doe 1.

On March 7, 2024, Plaintiff

filed the operative second amended complaint ("SAC") against Defendants Tova Fagan, Yael Sima Wintner, and Pinchas (Paul) Wintner (collectively, "Defendants"), alleging causes of action for (1) extortion, (2) conspiracy to commit fraud and/or extortion, and (3) intentional infliction of emotional distress.

On February 20, 2026, the parties engaged in an Informal

Discovery Conference, and the Court stated that "[t]he parties fulfilled their Informal Discovery requirements re: the issues set forth in the Informal Discovery Conference Statement file[d] by Defendant Wintner on January 29, 2026 as well as to outstanding written discovery propounded by Defendant Wintner to Plaintiff." (Minute Order 2/20/26.)

Defendant Yael Sima

Wintner ("Wintner") now moves to compel the deposition of party-affiliated

witness and Plaintiff's son, David Levy ("Levy"). No opposition was filed.

Request for Judicial Notice

The Court grants Wintner's
request for judicial notice of Exhibit 1.

Legal Standard

Under Code of Civil Procedure section 2017.010, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480, subd. (a).)

Under Code of Civil Procedure section 2025.4, subdivision (g)(1), "[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to

the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Discussion

Wintner moves to compel the deposition of non-party Levy. Under Code of Civil Procedure section 2020.010, a nonparty may be compelled to provide an oral deposition if subpoenaed. Wintner asserts that deposing Levy is necessary because “Levy is a critical witness in this action due to Plaintiff’s own discovery responses. As set forth in Plaintiff’s responses to Special Interrogatories, Levy was identified as a key witness to Plaintiff’s claims for intentional infliction of emotional distress and civil extortion. (Krueger Decl. ¶ 5, See, Exhibit ‘A’). Thus, Defendant is entitled to depose Levy in an effort to evaluate and defend against the claims made against her and also to examine witnesses that will likely testify at the time of trial.” (Mot., 4:10-15.)

In support of the instant motion, Wintner’s counsel explains that “Defendant first noticed David Levy’s deposition for April 17, 2025.” (Krueger Decl., ¶ 8, Ex. D.) “On April 17, 2025, David Levy and counsel did not appear for the lawfully noticed deposition and Defendant took a Certificate of Non-Appearance.” (Krueger Decl., ¶ 9.) Thereafter, “Levy’s Deposition was lawfully noticed for September 18, 2025. Defendant lawfully served the Deposition Subpoena for Personal Appearance and Production of Documents and Things (‘Subpoena’) through Plaintiff’s counsel of record, who agreed to accept service on behalf of David Levy on September 4, 2025. Levy served no objections. Levy was requested to produce, among other things, documents relating to Levy’s correspondence with Defendants concerning the facts at issue in the relevant suit.” (Krueger Decl., ¶ 6, Ex. B.) “On September 12, 2025, counsel for Plaintiff sent electronic correspondence to Wintner’s counsel, requesting a change in date to the deposition. However, Plaintiff’s counsel’s correspondence did not propose alternative dates and times for deposition, and did not present a formal objection to Defendant Wintner’s notice. Counsel for Defendant responded, requesting [] alternative dates upon which the deposition could be conducted. Counsel for Plaintiff did not respond. Thus, Levy’s deposition remained on calendar for September 18, 2025.” (Krueger Decl. ¶ 7, Ex. C.) However, “both David Levy and counsel did not appear for the lawfully noticed deposition and Defendant took a Certificate of Non-Appearance.” (Krueger Decl. ¶ 10, Ex. E.)

Wintner’s counsel further explains, “[p]er

the Court's Local Rules, before the filing of this Motion, Defendant noticed an informal discovery conference that was attended by counsel for all parties and counsel for David Levy on February 20, 2026. Still, the witness has not agreed to appear for deposition, and Plaintiff's counsel has not offered available dates." (Krueger Decl. ¶ 11). "After the February 20, 2026, informal discovery conference, my office again requested deposition dates. None were provided. Thus, Defendant re-noticed the deposition of David Levy for April 2, 2026." (Krueger Decl., ¶ 15.) "Counsel for the Plaintiff and for the witness have continued to fail to provide dates on which the witness will be available for deposition." (Krueger Decl., ¶ 16.) Finally, counsel attests that "[t]his Motion is necessary given this party-affiliated witness's discovery abuse despite lawfully serving two subpoenas and notices of the deposition, and the quickly approaching trial date. Levy's failure to appear for deposition has hindered Defendant's ability to obtain relevant, necessary and discoverable information related to Plaintiff's alleged case. Defendant's counsel will have limited time to conduct discovery and have been denied the opportunity to develop their defense to the case." (Krueger Decl., ¶ 12.)

Wintner's motion demonstrates that Levy appears to be an important witness in the case because Plaintiff included him multiple times throughout Plaintiff's answers to Wintner's special interrogatories. Additionally, Wintner's counsel's declaration demonstrates that, on multiple occasions, she attempted to obtain Levy's deposition, but to no avail. Accordingly, based on Wintner's explanation, and in light of a lack of opposition, the Court finds it necessary to compel Levy's deposition.

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Conclusion

Based on the foregoing, Wintner's motion for an order compelling the attendance of non-party David Levy at deposition is GRANTED. The Levy deposition is to take place within 30 days of the date of this order.

Wintner is ordered to give notice of this Order.

DATED: August 12, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court